

WHO IS WHO

in the processing of personal data
in your educational center

INTERESTED PARTY

It is the natural person who is the owner of the personal data.

The data belongs solely to each identified or identifiable natural person to whom it refers (students, teachers, parents, administrative and service staff, suppliers, etc.)

If the data being processed pertains to minors under 14 years of age, their parents or legal guardians, as applicable, will provide consent on their behalf, but the personal data belongs to the minors.

DATA PROCESSOR

Natural or legal person, authority, service, or body that processes the data on behalf of the data controller. The data controller determines to whom they delegate the processing that will be carried out. They must be chosen solely from those who provide sufficient guarantees of compliance with data protection regulations.

The data processor must always act within the framework of the instructions set by the data controller. The flow of personal data between the data controller and the data processor does not constitute a transfer of data.

Examples of data processors in the educational field: providers of technological services, companies that manage the school cafeteria, school transport, extracurricular activities, etc.

DATA CONTROLLER

Natural or legal person, public authority, service, or body that determines the purposes and means of the processing that is carried out.

The data controller for the personal data processing carried out by public educational centers is usually the Educational Administration (Department of Education of the Autonomous Community).

For the centers in Ceuta, Melilla, and those abroad, the data controller is the Ministry of Education and Vocational Training.

In the personal data processing carried out by private and concerted centers, the data controller is the educational center itself (foundation, religious congregation, cooperative, etc.)

DATA PROTECTION OFFICER (DPO)

A figure that must be designated by the data controller as mandatory for all educational centers that offer education at any of the levels established in the legislation regulating the right to education.

Functions, among others, of the DPO:

To advise and inform the data controller about the application of data protection regulations and to supervise compliance.

To act as an interlocutor with the affected individuals for any data protection issues, which includes inquiries from both families and education professionals, as well as complaints and claims.

The DPO will be appointed by the corresponding Educational Administration when it is responsible for data processing in publicly owned centers, and in the case of private or concerted centers, by the educational center itself.

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